

conferring the right to make the tenant to the *præcipe* shall be the protector;" but, by the 36th section, the protector of a settlement shall not be deemed to be a *trustee* in respect of his power of consent, and a Court of equity shall not control or interfere to restrain the exercise of his power of consent, nor treat his giving his consent as a breach of trust.

8. **Operation of the new law.**— Under the provisions, therefore, of this Act, as regards settlements made *since* the passing of the Act, a *bare trustee* cannot be protector in any case (*b*). As regards settlements made *before* the passing of the Act, though the trustee may become protector by the operation of the 31st section, he is not accountable in a Court of equity for the exercise of his discretion. But a bare trustee who is protector under that section can insist on retaining the legal estate only so long as the purposes of the trusts exist, that is, so long as according to the rules of a Court of equity he is required to be a trustee. Therefore, where there was a devise of lands to trustees upon trust for testator's daughter during her life, for her separate use, without power of anticipation, with remainder to the use of her children as tenants in common in tail with [*383] remainders **over*, it was held that the testator's daughter, having become *discoverte* and being *sui juris*, could compel a conveyance by the trustees of their legal estate (*a*).

9. **7 & 8 Vict. c. 76.**— By 7 & 8 Vict. c. 76, s. 8, it was declared that no estate should be created by way of *contingent remainder*; but that every estate which before that time would have taken effect as a contingent remainder, should take effect as an executory devise, or if in a deed, as an estate having the same properties as an executory devise, and that *contingent remainders* already created should not be defeated by the destruction or merger of the preceding estate.

10. **8 & 9 Vict. c. 106.**— But this sweeping provision was repealed by 8 & 9 Vict. c. 106, s. 1; and in lieu thereof it

[(*b*) See *Re Dudson's Contract*, 8 Ch. D. 628; *Re Ainslie*, 51 L. T. N. 89. S. 780.] (a) *Buttanshaw v. Martin, Johns*.